

COUNTERFACTUAL RECORD — NEVER OCCURRED — NOT FILED ON ANY
ACTUAL DOCKET — ALL IDENTIFIERS ARE FICTIONAL

Counterfactual Clerk Order Releasing Mandate After Rehearing Denial

Filed: July 8, 2026 Docket No. SYN-CA4-26-CV-4102-CF-NEVER-OCCURRED

United States Court of Appeals for the Fourth Circuit

Asterglen Freight Software, Inc., Appellant, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Appellees.

Asterglen timely petitioned for panel and en banc rehearing on June 22, 2026. The Court denied both requests on July 1 and left its June 8 opinion and judgment unchanged. Seven calendar days have now elapsed from entry of the denial. July 8 is later than June 29, the date that would have applied after expiration of the original rehearing period if no timely petition had been filed.

The docket for this rehearing sequence contains no motion to stay mandate, no granted stay, and no order directing a different issuance date. Federal Rule of Appellate Procedure 41(b) therefore permits release today. The mandate is RELEASED for immediate issuance on July 8, 2026. The clerk shall issue the mandate separately and transmit the June 8 opinion and judgment to the United States District Court for the Northern District of West Virginia.

This order addresses post-judgment timing only. It adds no holding to the opinion, makes no contract finding, and does not disturb the district court's January 12 dismissal of Count I. The appellate disposition remains dismissal of the appeal and remand of the matter, with each side bearing its own costs. The clerk shall serve this order on counsel for Asterglen, Copper Kestrel, and Meridian Silt and record issuance on the date stated above.

ENTERED BY THE CLERK